INTERNATIONAL BEAUTY PROFESSIONALS ASSOCIATION, INC. (IBPA)
A California Nonprofit Mutual Benefit Corporation
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MEMBERSHIP AGREEMENT

International Beauty Professionals Association, Inc.

Edition	Revised edition (supersedes all prior versions)
Effective date	November 11, 2026
Approved by	Board of Directors of International Beauty Professionals Association, Inc., Resolution No. 2026-01 dated November 11, 2026

This Membership Agreement (the "Agreement") is entered into between International Beauty Professionals Association, Inc. (the "Association" or "IBPA") and the applicant or member accepting this Agreement (the "Member" or the "Applicant").

By applying for membership, completing payment of any applicable membership fee, checking an acceptance box, signing electronically or otherwise accepting membership in the Association, the Applicant or Member confirms that he or she has read, understood and agreed to be legally bound by this Agreement.

1. Purpose of the Agreement

The purpose of this Agreement is to set out the legal terms, conditions, acknowledgments, rights, obligations, limitations and responsibilities applicable to membership in the Association.

This Agreement is intended to:

(a) govern the relationship between the Association and the Member;

(b) confirm the Member's agreement to comply with the Association's governing documents and policies;

(c) establish the conditions under which membership may be granted, maintained, suspended or terminated;

(d) clarify the limits of the Association's role, authority and obligations; and

(e) protect the legal, organizational and reputational interests of the Association.

2. Membership Is Conditional and Subject to Approval

Membership in the Association is selective and is not automatically open to all applicants.

The Applicant understands and agrees that:

(a) submitting an application does not guarantee admission;

(b) all applications are subject to review in accordance with the Membership Application Review Procedure, the Membership Review Policy and the Association's other applicable policies;

(c) the Association may approve, deny, defer, suspend, revoke or decline to renew membership in accordance with its governing documents and policies;

(d) membership takes effect only after approval by the Association and satisfaction of any applicable payment requirements.

The Applicant further understands that the Association reserves the right to request additional documentation, clarification, verification or supporting materials as part of the review process.

3. Membership Category and Term

The Member acknowledges that membership, if approved, is granted in the category determined by the Association based on the application submitted and the eligibility criteria applicable to that category.

The Member further acknowledges that:

(a) membership is granted for a defined term unless otherwise specified by the Association;

(b) membership must be renewed in accordance with the Association's rules and procedures;

(c) the rights, privileges and benefits of membership may vary depending on the membership category, status and standing;

(d) the Association reserves the right to revise membership categories, structures, eligibility requirements and benefit structures on a prospective basis.

4. Governing Documents and Mandatory Policies

The Member agrees to comply with all governing documents, rules, policies, procedures, standards and requirements of the Association, as adopted, amended or maintained from time to time, including, without limitation:

(a) the Bylaws;

(b) the Membership Policy;

(c) the Membership Application Review Procedure and the Membership Review Policy;

(d) the Code of Ethics;

(e) the Professional Standards;

(f) the Conflict of Interest Policy, where applicable;

(g) the Governance Policy, where applicable;

(h) the Membership Cancellation and Termination Policy;

(i) the Terms of Use and the Privacy Policy, where applicable; and

(j) any other duly adopted policies, procedures, committee rules, event rules or disciplinary requirements of the Association.

The Member understands and agrees that such documents and policies may be amended from time to time, and that continued membership or participation constitutes agreement to comply with their then-current versions to the extent permitted by law.

5. Member's Representations and Warranties

The Applicant or Member represents, warrants and agrees that:

(a) all information provided to the Association is true, accurate, complete and not misleading;

(b) all documents, credentials, licenses, certificates, portfolios, statements and supporting materials provided to the Association are authentic and lawfully provided;

(c) the Member will promptly update material information if it changes;

(d) the Member is professionally connected to the beauty industry as represented;

(e) the Member will not misrepresent his or her qualifications, experience, status, awards, recognition or relationship with the Association;

(f) the Member will not use membership in the Association in a false, deceptive, misleading or unauthorized manner.

The Member understands that any false, incomplete, misleading or fraudulent information may constitute grounds for denial, suspension, termination, disciplinary action or revocation of membership or recognition.

6. Member's Obligations

The Member agrees that, as a condition of membership, the Member must:

(a) maintain professional and ethical conduct consistent with the Association's standards;

(b) comply with the Code of Ethics, the Professional Standards and the Association's other requirements;

(c) cooperate in good faith with the Association's lawful requests, reviews, requests for clarification and governance processes;

(d) respect the mission, integrity, reputation and institutional interests of the Association;

(e) refrain from conduct that could materially harm the Association, its leadership, its members, its programs or its public reputation;

(f) comply with event rules, award rules, committee rules and participation requirements, where applicable;

(g) maintain confidentiality where required by his or her role or participation;

(h) comply with the payment obligations and renewal requirements applicable to membership.

7. No Guarantee of Professional, Legal, Business or Licensing Outcomes

The Member acknowledges and agrees that membership in the Association does not guarantee:

(a) professional success;

(b) income, revenue or business growth;

(c) client acquisition or market visibility;

(d) awards, titles, recognition, speaking roles, publication opportunities or appointment to a leadership position;

(e) government licensing, certification, approval, immigration benefit or legal authorization to practice;

(f) admission to any event, committee, award program or partnership opportunity.

The Member further acknowledges that the Association is not a government licensing body, regulatory authority, law firm, immigration authority, tax adviser or guarantor of professional outcomes.

Any educational, professional, informational or advisory materials provided by the Association are intended for general informational and professional purposes only and do not constitute legal, tax, regulatory, immigration, financial, medical or other licensed professional advice.

8. Membership Fees, Payments and Non-Refundability

The Member acknowledges and agrees that:

(a) applicable membership fees must be paid in accordance with the Association's payment requirements;

(b) membership fees are non-refundable except as expressly provided in an applicable written policy of the Association;

(c) cancellation, suspension, non-use of benefits, dissatisfaction, inactivity or termination do not entitle the Member to a refund unless expressly required by the Association's governing policy or applicable law;

(d) failure to make a required payment may result in non-activation, suspension, lapse or termination of membership.

Where the Association uses third-party payment processors, the Member also agrees to comply with the terms of the applicable payment platform to the extent they relate to the relevant transaction.

9. Use of Membership Status, Name, Badge and References to the Association

If membership is approved and remains active and in good standing, the Member may describe himself or herself using the applicable membership designation authorized by the Association, subject to the Association's rules.

The Member must not:

(a) imply that membership constitutes government licensing, legal authorization or regulatory approval;

(b) imply any endorsement beyond that expressly granted by the Association;

(c) use an expired, suspended, revoked or terminated membership status as if it were active;

(d) alter or misuse the Association's membership certificates, badges, logos, seals, designations or materials;

(e) make false or misleading public statements regarding his or her status with the Association.

The Association reserves the right to restrict, revoke or condition the Member's right to use names, badges, certificates, logos, designations or references associated with the Association.

10. Member Directory, Public Listing and Public Information

The Member understands and agrees that, where applicable and subject to the Association's policies and the Member's consent settings, certain membership-related information may be included in the Association's directory, website, member lists, event materials, announcements or other official channels.

Such information may include, without limitation:

(a) name or business name;

(b) membership category;

(c) location;

(d) professional title or area of specialization;

(e) an approved profile or public information;

(f) recognition, a badge or a member status designation.

The Member represents that any public information provided for listing is accurate and authorized for publication.

The Association does not guarantee the commercial value, visibility, ranking, lead generation or outcome of any listing or publication.

11. Intellectual Property and Use of the Association's Materials

All intellectual property rights in the Association's name, logos, materials, publications, documents, standards, graphics, content, forms, badges, seals, website content and other proprietary materials remain the exclusive property of the Association or its licensors unless expressly stated otherwise.

Membership does not transfer ownership of any intellectual property rights to the Member.

The Member must not reproduce, publish, distribute, license, modify, sell or use the Association's materials except as expressly permitted by the Association in writing.

Any permitted use of the Association's intellectual property may be revoked by the Association at any time if the Member misuses such materials or acts inconsistently with the Association's policies.

12. Confidentiality and Data Processing

The Member acknowledges that the Association may collect, store, use, list and process information about the Applicant and Member for the purposes of membership administration, governance, compliance, communications, directory management, program participation, review processes, award processes, event administration and related organizational purposes.

The Member agrees that such processing is governed by the Association's Privacy Policy and applicable law.

The Member further agrees that if the Member performs any review, governance, committee, judging, disciplinary or confidential role, the Member may gain access to non-public information and must maintain strict confidentiality with respect to such information.

Unauthorized disclosure, misuse, copying or retention of the Association's confidential information is prohibited and may result in disciplinary action, removal, termination, legal proceedings or other consequences.

13. Complaints, Reviews, Discipline and Enforcement

The Member understands and agrees that the Association may review allegations, complaints, conduct-related concerns, standards issues, ethics issues or policy violations involving the Member.

The Member agrees to cooperate in good faith with the Association's lawful review, inquiry, disciplinary or appeal processes.

The Member further understands and agrees that, in accordance with the applicable governing documents and procedures, the Association may apply one or more of the following measures:

(a) educational guidance;

(b) a warning or reprimand;

(c) a requirement to take corrective action;

(d) restriction of participation or privileges;

(e) non-renewal;

(f) suspension;

(g) termination;

(h) removal from committee, judging, speaking, award or leadership roles;

(i) revocation of certain recognitions, privileges or authorizations.

Nothing in this Agreement limits the Association's right to protect its mission, reputation, operations, legal interests or membership standards.

14. Voluntary Cancellation by the Member

The Member may voluntarily cancel membership in accordance with the Membership Cancellation and Termination Policy or other applicable procedures established by the Association.

The Member understands that cancellation does not automatically entitle the Member to any refund, pro-rata adjustment, right to reinstatement or continued use of the Association's status or benefits unless expressly provided in the applicable policy.

15. Suspension, Termination, Non-Renewal and Revocation by the Association

The Member acknowledges and agrees that the Association may suspend, terminate, decline to renew, revoke or otherwise restrict membership or associated privileges where permitted by the Association's governing documents and policies, including where:

(a) the Member violates the Association's policies, standards, ethics requirements, rules or obligations;

(b) the Member provides false, misleading, incomplete or fraudulent information;

(c) the Member engages in misconduct, unethical conduct, conduct harmful to reputation or conduct inconsistent with the Association's mission or standards;

(d) required fees are not paid;

(e) the Member fails to maintain eligibility requirements;

(f) the Member misuses the Association's status, materials or recognition;

(g) the Association determines that continued membership creates material governance, legal, operational, ethical or reputational risks.

The Member understands that the Association may take interim measures where appropriate and that final decisions are governed by the Association's applicable procedures.

16. Limitation of Liability

To the maximum extent permitted by law, the Association, its Directors, Officers, committee members, employees, contractors, volunteers, agents and representatives shall not be liable for any direct, indirect, incidental, consequential, special, punitive or reputational damages arising out of or relating to:

(a) membership review decisions;

(b) denial, suspension, termination or non-renewal of membership;

(c) the interpretation or application of the Association's policies;

(d) participation or non-participation in events, programs, awards, committees or listings;

(e) reliance on the Association's content, educational materials or recommendations;

(f) the acts or omissions of other members, partners, vendors, sponsors, speakers, judges or third parties;

(g) business, professional, reputational, financial or regulatory outcomes associated with membership or the absence of membership.

Where liability cannot be fully excluded under applicable law, it shall be limited to the maximum extent permitted by law.

17. Indemnification by the Member

To the maximum extent permitted by law, the Member agrees to indemnify, defend and hold harmless the Association, its Directors, Officers, committee members, employees, agents, contractors and representatives from and against claims, losses, liabilities, damages, costs and expenses (including reasonable attorneys' fees) arising out of or relating to:

(a) the Member's breach of this Agreement;

(b) false, misleading or unlawful submissions or statements by the Member;

(c) the Member's misuse of the Association's status, intellectual property, materials, badges, listings or recognition;

(d) the Member's unlawful, negligent, unethical or harmful conduct;

(e) disputes between the Member and any third party arising from the Member's services, business activities, statements or conduct.

This provision survives cancellation, expiration, suspension or termination of membership to the extent permitted by law.

18. No Agency, Partnership or Employment Relationship

Membership in the Association does not create any agency, partnership, joint venture, fiduciary business or employment relationship between the Member and the Association.

The Member is not authorized to act on behalf of the Association, bind it, represent it, enter into contracts on its behalf or otherwise obligate the Association unless expressly authorized in writing.

19. Governing Law and Dispute Resolution

This Agreement is governed by and construed in accordance with the laws of the State of California, without regard to its conflict-of-laws principles.

Any dispute arising out of or relating to this Agreement, membership status, actions of the Association or any related matter shall be resolved in the manner set out in the Association's governing documents and applicable policies or, if not otherwise specified, within the jurisdiction of the appropriate courts located in the State of California, to the extent permitted by law.

The Member agrees to submit to such jurisdiction and venue where applicable.

20. Relationship to Other Governing Documents

This Agreement must be read together with the Association's governing documents and policies, including, without limitation:

(a) the Bylaws;

(b) the Membership Policy;

(c) the Membership Application Review Procedure;

(d) the Code of Ethics;

(e) the Professional Standards;

(f) the Conflict of Interest Policy, where applicable;

(g) the Governance Policy, where applicable;

(h) the Membership Cancellation and Termination Policy;

(i) the Privacy Policy;

(j) the Terms of Use; and

(k) other duly adopted policies and procedures of the Association.

In the event of any inconsistency, the Bylaws prevail unless otherwise required by law or expressly stated in a later-adopted governing document.

21. Entire Agreement

This Agreement, together with the governing documents and policies incorporated into it by reference, constitutes the entire agreement between the Member and the Association with respect to membership and supersedes prior understandings relating to membership to the extent applicable.

22. Severability

If any provision of this Agreement is held invalid, unlawful or unenforceable, the remaining provisions remain in full force and effect to the maximum extent permitted by law.

23. Amendments

This Agreement may be amended, updated, revised or replaced by the Association in accordance with its governing procedures.

Continued application, renewal, payment, participation or membership after such an amendment takes effect may constitute acceptance of the revised terms to the extent permitted by law.

24. Official Language

The official version of this Agreement is maintained in English.

Any translation is provided for convenience only.

In the event of any discrepancy, inconsistency or conflict between language versions, the English version prevails.

25. Acceptance

By submitting a membership application, checking any acceptance box, providing the required materials, making payment, signing electronically or otherwise accepting membership, the Applicant or Member confirms that he or she:

(a) has read this Membership Agreement;

(b) understands its contents;

(c) agrees to be legally bound by it; and

(d) agrees to comply with the Association's governing documents and policies.